

## 25LBCV02306 25LBCV02306

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1.

Complaint

On 8/20/25, Plaintiff, Roots, Inc. filed a complaint against Defendant, Roots Addiction and Psychiatry Medical Group, P.C., Kourosh Parsapour, M.D., Danina Rodriguez, and Andrei Dokukin, M.D. for injunctive relief and attorneys' fees. The complaint alleges Plaintiff has an independent contractor agreement with Defendants, and Plaintiff terminated the contract because Defendants were engaged in unauthorized activity in breach of the parties' agreement and otherwise in breach of the agreement.

On 11/21/25, Plaintiff filed a First Amended Complaint. The FAC adds two new defendants – Open Text, Inc. and Summitt Reprographics, Inc.

These are the entities alleged to be storing the information taken by the other defendants from Plaintiff. The FAC includes causes of action for breach of independent contractor agreements, violation of the California Confidentiality of Medical Information Act, misappropriation of trade secrets, money lent (alternatively unjust enrichment), and conversion.

2.

Pertinent Allegations of the Operative FAC

The Court finds it necessary to set forth the pertinent allegations of the FAC. Plaintiff Roots, Inc.

alleges, inter

alia, that it “is a licensed healthcare provider that offers substance abuse treatment and related medical services. In the course of its operations, [Plaintiff] maintains and manages sensitive Protected Health Information (PHI) and Substance Use Disorder (SUD) records that are subject to strict confidentiality protections under federal and state law, including the Health Insurance Portability and Accountability Act of 1996 (‘HIPAA’), 42 C.F.R. Part 2, the California Confidentiality of Medical Information Act (‘CMIA’), and related regulations.” (FAC ¶ 1.)

Defendants Andrei Dokukin, M.D.

(“Dokukin”) and Kourosh Parsapour, M.D. (“Parsapour”) are alleged to have been engaged by Plaintiff as independent contractors pursuant to a separate Independent Contractor Agreement. (FAC

¶¶ 2-3.) Defendants Dokukin and Parsapour

were both “granted authorized access to [Plaintiff’s] Google Workspace systems. These systems contain PHI, SUD records, and

proprietary business records, including but not limited to patient medical data, financial records, operational documents, and internal communications.” (Id.)

Defendant Danina Rodriguez

(“Rodriguez”) was engaged by Plaintiff and, via that engagement and in connection with her work, defendant Rodriguez “was granted authorized access to [Plaintiff’s] secure Google Workspace systems.

These systems contain PHI, SUD records, and proprietary business records

. . . .” (FAC ¶ 4.) Defendant Roots Addiction and Psychiatry

Medical Group, P.C. (“RAP”) was engaged by Plaintiff under a Professional

Services Agreement to provide professional medical services. (Id. ¶ 5.) Defendants Dokukin and Parsapour are

principals, owners, or agents of defendant RAP. (Id.) Defendant Open Text Inc. “operates under the

name ‘Hightail by opentext.’ (‘Hightail’)[.]” (Id. ¶ 6.) Hightail operates a file-sharing service and

“received, stored, and facilitated access to [Plaintiff’s] unauthorizedly exported data . . . acting as a recipient and custodian of such data.” (Id.)

Defendant Summitt Reprographics, Inc.

(“Summitt Reprographics”) “specializes in document scanning, photocopying,

electronic data conversion (EDD), [and] archiving services . . . .” (Id. ¶ 7.) Defendant Summitt Reprographics is alleged to

have “received, stored, scanned, and digitized [Plaintiff’s] unauthorizedly

removed physical documents . . . acting as a scanning and archiving vendor.” (Id.)

On or about February 5, 2025,

defendants Dokukin and Parsapour entered into a Professional Services Agreement

with Plaintiff to provide medical services. (FAC ¶ 10.) Plaintiff alleges that “[o]n or about August

5-6, 2025, [d]efendants Dokukin, Parsapour, and Rodriguez, acting through RAP and under their Independent Contractor Agreements, initiated unauthorized 'Google Takeout' exports of [Plaintiff's] electronic data." (Id. at ¶ 11.) "These exports transferred a total of approximately 8.12 GB of data from [Plaintiff's] secure Google Workspace to external storage. Specifically, [d]efendant Dokukin exported approximately 2.93 GB, [d]efendant Parsapour exported approximately 2.33 GB, and [d]efendant Rodriguez exported approximately 2.86 GB." (Id.)

Plaintiff alleges the following:

"The exported data included a large volume of sensitive PHI and SUD records, such as patient

names, medical diagnoses, treatment histories, urinalysis results, Social Security numbers,

addresses, insurance information, and session notes. It also included confidential and

proprietary business records belonging to [Plaintiff], such as operational manuals, billing information, and internal communications. These unauthorized exports were documented through [Plaintiff's] Google Workspace audit logs."

(FAC ¶ 12.)

On or about August 7, 2025, Plaintiff terminated the Independent Contractor Agreements with

defendants Dokukin

and Parsapour. (FAC ¶ 13.) Due to her affiliation with said defendants, defendant Rodriguez was also terminated.

(Id.) "After termination,

Defendants retained the downloaded data without [Plaintiff's]

authorization." (Id. ¶ 14.) Plaintiff alleges as follows: "Defendants'

actions violated the confidentiality provisions of their Independent Contractor

Agreements, the [Professional Services Agreement], and multiple federal and

state laws governing the use and disclosure of PHI and SUD records." (Id. ¶ 15.)

Plaintiff transmitted written demand

letters to Defendants “requiring that they immediately return or destroy all downloaded data, certify compliance under penalty of perjury, and disclose third-party disclosures by August 20, 2025.” (FAC ¶ 16.) “On August 19, 2025, Defendants Dokukin, Parsapour, Rodriguez, and RAP responded in writing and admitted that they had retained the data on a third-party website . . . and planned to transfer the data to law enforcement agencies . . . without obtaining a court order.” (Id.) “Subsequently, Defendants disclosed that the six boxes of physical patient medical records unauthorizedly removed on June 6, 2025, are being held at Defendant Summitt Reprographics in Century City.” (Id. ¶ 17.) “On or about October 2025, [Plaintiff] retrieved the physical records from Defendant Summitt Reprographics.” (Id. ¶ 18.) However, defendant Summitt Reprographics is alleged to have

“scanned and digitized the records, as evidenced by the provision of scanned versions via Hightail.” (Id.)

Plaintiff alleges that Defendants’ justifications are unfounded. (FAC ¶ 19.) The alleged “retention of this data poses significant and ongoing risks to [Plaintiff] and its patients. These risks include patient privacy violations, stigmatization and discrimination resulting from unauthorized disclosure of SUD treatment records, [and] regulatory penalties . . . .” (FAC ¶ 20.) Plaintiff “has incurred and will continue to incur economic damages as a result of Defendants’ conduct.” (Id. ¶ 21.)

3.

Ex Parte Application for TRO

On 8/21/25, Plaintiff filed an ex parte application for a TRO, seeking an order compelling Defendants to return downloaded data or destroy it under forensic supervision and prohibiting Defendants from further use or disclosure of the data.

Defendants filed opposition to the application. They indicated they have discovered Plaintiff is engaged in fraud and they have taken data to prove their claims and have turned it over to the appropriate authorities. Defendants argued the motion was moot because they had already turned over the subject documents to the authorities, so there was nothing to be done at this juncture.

The Court's minute order from the TRO hearing notes, "The Court finds that the TRO is moot, as parties agree to not distribute any of the documents." (See 08/25/25 Minute Order at p. 1.) The Court took the TRO off calendar.

4.

Previously Scheduled Motion for Preliminary Injunction

On 9/12/25, Plaintiff filed a motion for a preliminary injunction. The motion sought the same relief at issue on the TRO – an order that Defendants return or destroy the subject data and cease any further use of the data, including to government agencies, without a court order.

Prior to the hearing, the Court issued a tentative ruling noting the lack of opposition to the motion and indicating the issues it wished to discuss with the parties at the hearing. Either before or after the Court issued the tentative ruling, Plaintiff used the online reservation management system to continue the hearing on the motion to 11/03/26.

5.

Instant Motion for Preliminary Injunction

On 12/08/25, Plaintiff filed a new motion for preliminary injunction. The new motion seeks an order requiring Defendants to:

(1) immediately return or forensically destroy every copy—electronic and physical—of the 8.12 gigabytes of confidential patient records and proprietary data they extracted on August 5–6, 2025; (2) provide a sworn accounting of every location and every recipient of those records; and (3) refrain from any further access, use, or disclosure absent express court order. (Not. of Mot. at p. 1:6.)

a. Opposition

On 1/15/26, defendant Open Text, Inc. filed an opposition to the instant motion. In its opposition, which does not cite to any legal authority, defendant Open Text, Inc. contends, inter

alia, that it “has no objection to deleting, sequestering . . . transferring, or interpleading the disputed data stored on Hightail, so long as the specifics conform with standard industry protocol and industry practice (e.g., data security).” (1/15/26 Opp’n at p. 2:19-22.) “OpenText has requested a voluntary dismissal from Plaintiff and awaits a response.” (Id. at p. 2:25-26.)

On 1/16/26, defendants Dokukin, Paraspour, Rodriguez, and RAP filed a joint opposition and assert the following: (1) Plaintiff already has the protection of the Court’s prior order and there is no evidence of any interim harm; (2) the preliminary injunction will harm significant public policy interests; (3) the motion is premature because the case is not at issue; (4) at a minimum, the relief sought is overbroad; and (5) the “verified” complaint is not properly verified and cannot form the basis for the relief sought.

b.

Subsequent

Procedural History

On 1/20/26, after hearing, the Court continued the hearing on the motion for preliminary injunction

only as to defendant

Summitt Reprographics 3/26/26. (01/20/26

Minute Order at p. 3.) The Court

indicated that it “wished to hear from the parties concerning why opposition to the motion was not filed” as “Defendants strenuously opposed the request for a TRO, and the fact that they have not opposed this motion tends to lead the Court to believe that the issues have been resolved.” (Id. at p. 2.) The Court noted that “[i]n the event issues remain, the Court is mindful of the fact that Plaintiff is seeking both a mandatory and also a prohibitory injunction. To the extent Plaintiff is seeking to have Defendants return or destroy the records and/or provide a sworn declaration, this would be a mandatory injunction.” (Id. at pp. 2-3.) The Court ordered the parties “to submit a stipulation and order so that the files and information cannot be accessed” and ordered the parties to submit the stipulation “by January 23, 2026.” (Id. at p. 3.)

On 3/5/26, pursuant to stipulation, the Court entered an order which, inter alia, continued the hearing on

the motion for preliminary injunction to 5/21/26.

On 3/9/26, at the request of Plaintiff, defendant Open Text Inc. was dismissed from the complaint without prejudice. (See 03/06/26 Request for Dismissal.)

On 3/12/26, a stipulation and order re: handling of records as to defendant Summitt Reprographics was filed which, inter alia, ordered defendant Summit Reprographics to “permanently and irretrievably destroy all copies of the Records . . . in its possession, custody, or control, wherever located . . . .” (03/12/26 Stipulation and Order at p. 3:11-14.)

On 4/15/26, at the request of Plaintiff, defendant Summitt Reprographics was dismissed from the complaint without prejudice. (See 04/14/26 Request for Dismissal.)

On 4/29/26, Plaintiff filed a supplemental memorandum of points and authorities in support of the motion for preliminary injunction. Plaintiff contends, inter alia, that “[t]he only remaining copies of the Records are the local copies held by the Doctor Defendants and their counsel, Mark Kleiman.” (04/29/26 Supplemental Memorandum at p. 2:10-11.) Plaintiff contends that the issue before the Court is whether it should “order the secure destruction of these final copies and require certifications that the job is complete.” (Id. at p. 2:12-13.) Plaintiff states as follows in the supplemental memorandum:

“There is nothing left to litigate on the scope of relief. The Court has already eliminated all third-party copies. The only remaining risk is the Doctor Defendants’ and their counsel’s continued possession of the 8.12 GB of sensitive patient records. No lesser remedy can address that risk. Without an order requiring secure destruction and sworn certifications, the harm persists indefinitely. The law does not require the Court to tolerate an ongoing breach of medical confidentiality where a precise, narrow, and enforceable remedy is available.”

(04/29/26 Supplemental Memorandum at p. 4:16-22.)

On 5/7/26, after hearing, the Court denied the special motion to strike of Defendants. (See

05/07/26 Minute  
Order at pp. 1, 5.)

5/21/26, after hearing, the Court continued the hearing on the motion for preliminary injunction to 6/18/26. (05/21/26 Minute Order at p. 1.) The Court ordered the parties “to meet and confer in an effort to reach a joint stipulation.” (Id.) “If no resolution is made, parties must submit a joint report regarding outstanding issues and recommendations. This is to be submitted by June 11, 2026.” (Id.)

On 6/4/26, Defendants filed a notice of appeal as to the Court’s 5/7/26 order.

On 6/12/26, the parties filed a joint report regarding outstanding issues (the “Joint Report”). The parties met and conferred via telephone on June 11, 2026. (Joint Report, p. 2:11-12.) The parties indicate that “[t]hrough prior Court-approved orders, all third-party copies of the data have been permanently deleted (the Hightail/Open Text copies per the February 9, 2026 order; the Summitt Reprographics copies per the March 12, 2026 order). The only remaining unauthorized copies are the local copies held by the Doctor Defendants and Mr. Kleiman.” (Id. at p. 2:28-3:5.) It is the position of Plaintiff that “Defendants concede that the Court retains jurisdiction to hear and decide this motion notwithstanding their pending appeal . . . that the order binds Mr. Kleiman personally, who under Defendants’ own proposed order would destroy copies and certify compliance . . . that all copies other than the patient records at issue are to be destroyed . . . that each [d]efendant and Mr. Kleiman will provide sworn certifications . . . that Roots will retain the authoritative originals and produce them on any lawful subpoena or court order . . . and that a continuing injunction against further use, retention, or disclosure should issue.” (Id. at p 3:8-16.)

The sole issue before the Court, according to Plaintiff, “is whether the remaining unauthorized copies of the



patient records must be securely destroyed, as Plaintiff proposes, or transferred to and retained on a HIPAA-compliant platform, as Defendants propose.” (Joint Report at p. 3:16-19.)

According to Defendants: “Defendants propose a secure platform and protective order, not destruction. Defendants propose that the actual medical records be placed on a HIPAA-compliant, secure, encrypted platform with audit-trail capability, subject to a protective order under which Defendants would make no use or distribution of the records other than to assist the government agencies to which the records were reported.” (Joint Report at p. 7:11-16.) Defendants indicate that “[t]he download was not unauthorized, and the May 7, 2026 ruling is not law of the case” and “[a]t the time the data was accessed, the Doctor Defendants remained under contract with Plaintiff and had unrestricted access to all of the material . . . .” (Id. at p. 6:3-7.) Defendants assert that “[m]uch of the dataset is not patient information.” (Id. at p. 6:18.) Defendants argue that the local copies are not the only copies. (Id. at p. 7:6.) Allowing Plaintiff “as sole custodian is unworkable for the doctors’ cooperation with the government. Defendants contend that leaving the records exclusively in Plaintiff’s possession would make cooperation with government investigations impossible . . . .” (Id. at p. 7:20-23.) “Plaintiff could frustrate access or, by tracking Defendants’ activity in the database, gain insight into the sources and methods of the government’s inquiries.” (Id. at p. 7:26-28.)

On 6/18/26, the Court and counsel conferred regarding the motion for preliminary injunction. (06/18/26 Minute Order at p. 1.) The parties informed the Court “that a ‘Joint Report Regarding Outstanding Issues’ was filed on 06/12/2026.” (Id.) The Court declined to adopt the tentative ruling and, instead, continued the hearing on the motion for preliminary injunction to 8/13/26. (Id.) The Court ordered the “[p]arties to submit a joint witness list and joint exhibit list no later than 07/30/2026.” (Id.)

On 7/2/26, this action was reassigned to the Honorable Sabina A. Helton sitting in Department S27 at Governor George Deukmejian Courthouse effective 7/6/26.

As of

Friday, 8/7/26, as of 4:30 P.M., the parties have not filed a joint witness list or joint exhibit list as ordered by the Court. (See 06/18/26 Minute Order at p. 1.)

c.

Applicable

Law

The purpose of a preliminary injunction is to preserve the status quo pending a decision on the merits. (MaJor v. Miraverde Homeowners Ass'n. (1992) 7 Cal.App.4th 618, 623.) In deciding whether or not to grant a preliminary injunction, the court looks to two factors, including "(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (White v. Davis (2003) 30 Cal.4th 528, 553.) The factors are interrelated, with a greater showing on one permitting a lesser showing on the other. (Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) However, the party seeking an injunction must demonstrate at least a reasonable probability of success on the merits. (IT Corp. v. County of Imperial (1983) 35 Cal.3d 63, 73-74.) The party seeking the injunction bears the burden of demonstrating both a likelihood of success on the merits and the occurrence of irreparable harm. (Savage v. Trammell Crow Co. (1990) 223 Cal.App.3d 1562, 1571.) Irreparable harm may exist if the plaintiff can show an inadequate remedy at law. (Code Civ. Proc. § 526(a).)

"The granting or denying of a preliminary injunction does not constitute an adjudication of the ultimate rights in controversy." (Cohen v. Board of Supervisors (1985) 40 Cal.3d 277, 286; see also Yee v. American National Ins. Co. (2015) 235 Cal.App.4th 453, 457-458 ["a preliminary injunction is not a determination on the merits...."].)

d.

Evidence

in Support of the Motion

In support of the motion, Plaintiff relies upon the declarations of Seth Blackburn, Miguel Orozco-Quime, and Matthew L. Kinley, and accompanying

exhibits, which were filed on September 12, 2025.

Seth Blackburn (“Blackburn”) is the President and Executive Director of Plaintiff. (Declaration of Seth Blackburn Filed September 12, 2025 (“Blackburn Decl.”) ¶ 1.) Mr. Blackburn states, inter alia, that Plaintiff provides services such as substance abuse treatment and medical services. (Id. ¶ 2.) Plaintiff “has a legal responsibility . . . to regain all PHI and SUD records improperly taken from [Plaintiff] to protect patient confidentiality and prevent unauthorized disclosures that could result in stigma, discrimination, regulatory penalties . . . patient lawsuits, or reputational harm.” (Id. ¶ 3.) Mr. Blackburn sets forth the alleged actions of defendants Dokukin, Parsapour, Rodriguez, and RAP in downloading “8.12 GB of [Plaintiff’s] data via Google Takeout, including PHI . . . and proprietary records, without authorization . . . .” (Id. ¶ 4.) Mr. Blackburn states, inter alia, that Defendants’ patient care justification is invalid. (Id. ¶ 7.)

The declaration of Miguel Orozco-Quime, who is the IT director for Plaintiff, merely serves to substantiate the alleged theft of data by defendants Dokukin, Parsapour, Rodriguez, and RAP. (Declaration of Miguel Orozco-Quime Filed September 12, 2025 (“Orozco-Quime Decl.”) ¶¶ 1-7.) “Defendants’ claim of needing the data for patient care is baseless, as [Plaintiff] notified patients of care options and referred them to community providers . . . .” (Id. ¶ 8.) “Retention of data on third-party website and planned transfer to law enforcement without a court order risks irreparable harm to [Plaintiff’s] patients . . . and [Plaintiff] . . . .” (Id. ¶ 9.)

The declaration of counsel for Plaintiff, Matthew L. Kinley, sets forth counsel’s communications with counsel for Defendants following denial of the TRO. (Declaration of Matthew L. Kinley Filed September 12, 2025 (“Kinley Decl.”) ¶¶ 2-7.) Counsel declares that “[t]he continued retention and confirmed disclosure of 8.12 GB of data . . . on an unsecured third-party repository and to government agencies without a court order, as admitted by Kleiman, heightens the risk to patient privacy and [Plaintiff’s] compliance with HIPAA . . . 42 CFR Part 2 (§ 2.16), and [the] CMIA . . . .” (Id. ¶ 8.)

In support of the supplemental memorandum of points and authorities, Attorney Kinley declares, inter alia, that since the original motion for preliminary injunction was filed, “Open Text (Hightail) and Summitt

Reprographics RTR (sic) has now fully resolved the third-party vendors' involvement through court-approved orders . . . ." (Supplemental Declaration of Matthew L. Kinley Filed April 29, 2026 ("Kinley Suppl. Decl.") ¶ 3.) "[L]ocal copies of the full 8.12 GB of Records remain in the possession of the Doctor Defendants and/or their counsel, Mark Kleiman." (Id. ¶ 4.) On September 11, 2025, Attorney Kleiman informed Attorney Kinley "that the 8.12 GB of data had already been disclosed to various government agencies, while confirming that the documents remained in the password-protected repository . . . ." (Id. ¶ 5.) Attorney Kinley sets forth the scope of the Records sought. (Id. ¶¶ 2, Exs. B, C, D, G, H.)

Plaintiff requests the following relief: "[T]he Court issue the Preliminary Injunction against the remaining Doctor Defendants and their counsel, Mark Kleiman, ordering the immediate and permanent destruction of all local copies of the Records, with sworn certifications of compliance under the penalty of perjury." (Kinley Suppl. Decl. ¶ 9.)

e.  
Evidence  
in Support of the Opposition

In opposition to the motion, Attorney Kleiman provides a declaration. Attorney Kleiman declares, inter alia, that on August 25, 2025, the Court ordered that Defendants not disseminate any of the documents at issue to further law enforcement agencies or anyone else. (Declaration of Mark Allen Kleiman Filed January 16, 2026 ("Kleiman Decl.") ¶ 2, Ex. A.) Counsel attests that "Defendants certainly did not delay in 'admitting' that the documents have been sent to state and federal investigators, as the Plaintiffs have alleged." (Id. ¶ 3, Ex. B.)

Defendant Dokukin declares, inter alia, that "the Google Drives referenced by Plaintiff include personal and professional correspondence of [their] own and other personal material. They are not separately stored elsewhere[,] and [Defendants] shall be harmed if [they] lose access to [the] material." (Declaration of Andrei Dokukin, M.D. Filed January 16, 2026 ("Dokukin Decl.") ¶ 4.)

f.

## Analysis

Based on the Joint Statement, Plaintiff contends that the sole issue is “whether the remaining unauthorized copies of the patient records must be securely destroyed . . . .” (See Joint Statement at p. 3:16-17.) The Court references its 1/20/26 Minute Order and incorporates such recitation herein. The Court stated therein:

“To the extent Plaintiff is seeking to have Defendants return or destroy the records and/or provide a sworn declaration, this would be a mandatory injunction.

Pursuant to *Brown v. Pacific Found., Inc.*, (2019) 34 Cal.App.5th 915, 925, mandatory injunctions are rarely granted, and should only be granted in extreme cases where the right thereto is firmly established. The Court finds, at most, it would be inclined to issue a prohibitory injunction (precluding Defendants from further using or disseminating the subject data), as Plaintiff has not made any showing that a mandatory injunction meets this very high standard. Notably, the Court provided this analysis in its prior tentative ruling, and Plaintiff’s new moving papers do not address the requirements for obtaining a mandatory injunction.”

(01/20/26 Minute Order at p. 3.)

The Court finds that the same issue exists that was identified in the Court’s minute order issued on 1/20/26.

Neither the supplemental memorandum of Plaintiff nor the supplemental declaration of Plaintiff’s counsel addresses the requirements for obtaining a mandatory injunction. According to the

Joint Statement, Plaintiff seeks to have Defendants destroy the records at issue. Such request is a mandatory injunction as it would require Defendants “to take affirmative action . . . .” (*Shaw v. Los Angeles Unified School Dist.* (2023) 95 Cal.App.5th 740, 768.)

Further, although not raised in the opposition, the Court finds that Plaintiff has not argued (or provided admissible evidence) that there is no adequate remedy at law. Plaintiff has not argued or provided evidence via a declaration that it “has no adequate alternative remedy . . . .” (*Davenport*

*v. Blue Cross of California* (1997) 52 Cal.App.4th 435, 450.) “A party seeking injunctive relief must show the absence of an adequate remedy at law.” (*Department of Fish & Game v.*

Anderson-Cottonwood Irrigation Dist. (1992) 8 Cal.App.4th 1554, 1564 [emphasis added].) Thus, Plaintiff has not met its burden to warrant a preliminary injunction.

6.

Conclusion

Based on the foregoing, the Court DENIES the motion for preliminary injunction.

Plaintiff is ordered to give notice.